

a knee injury from slipping on construction sludge, which the plaintiff seeks to escalate into a major official persecution.

The present motion is captioned “Motion to Halt, Sease & Desist Crimes Against Justice”. It is an incoherent rant asserting in conclusory terms that defendant and its attorney have been lying to the Court -- but with neither any coherent narrative, nor any supporting evidence, nor any clear statement of what plaintiff wants the Court to do about it except something like “make them stop”, or maybe convict them of perjury. That’s not how the court system works. The motion is **denied**.

10. 9:00 AM CASE NUMBER: C25-02856
CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV
***HEARING ON MOTION IN RE: ORDER AUTHORIZING ALTERNATIVE SERVICE OF SUMMONS ON**
DEFENDANT ANIL YADAV CCP 413.30
FILED BY: VAN DE POEL & LEVY LLP
TENTATIVE RULING:

This is an action by a law firm to collect contractual legal fees. There are two defendants, a corporation (Yadav Enterprises, Inc.) and an individual (Anil Yadav, apparently the principal of the corporation). The corporation has been served, has counsel, and has been actively defending the case.

Mr. Yadav, however, appears to be ducking service, as shown by the report of the process servers. He has not authorized the corporation’s counsel to accept service on his behalf. It is readily inferable, however, that he is fully aware of the litigation and participating in directing defense efforts.

Plaintiff moves for an order authorizing alternative forms of service, namely email to the corporation’s attorneys, mail to the attorneys, and mail to the individual defendant at his home address. The motion is **granted**.

11. 9:00 AM CASE NUMBER: C25-03201
CASE NAME: DELMARIE THOMAS VS. GALINDO WOODS CONDOMINIUM ASSOCIATION
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: GALINDO WOODS CONDOMINIUM ASSOCIATION
TENTATIVE RULING:

Defendant Galindo Woods Condominium Association’s demurrer to the complaint is **overruled**. Defendant shall file and serve an answer by July 2, 2026.

Plaintiff is suing Defendant for negligence and premises liability. She alleges that the Defendant failed to properly maintain the pipes at the property, which caused pipes to burst and create a water leak and mold in the common area of the condominium, causing the plaintiff to suffer respiratory issues, including asthma.

Defendant demurs to both causes of action based upon the failure to state facts sufficient to constitute a cause of action under Code of Civil Procedure § 430.10(e). On demurrer for failure to state sufficient facts to constitute a cause of action, the Court reviews the factual allegations and must overrule a demurrer if a valid claim is alleged. (See *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th

26, 38.)

Defendant argues that an alleged duty to maintain or repair common areas arises solely from the CC&Rs, and there is no tort claim in absence of facts sufficient to allege the existence of an independent legal duty. Both negligence and premises liability require a showing that the defendant owed a duty of care. (*Chee v. Amanda Goldt Property Management* (2006) 143 Cal.App.4th 1360, 1369.)

Defendant relies on *Sands v. Walnut Gardens Condominium Assn., Inc.* (2019) 35 Cal.App.5th 174 to support its argument that there is no duty to repair a roof and plumbing. In *Sands* the plaintiffs alleged that a pipe broke on the roof and caused water damage in plaintiffs' bedroom. Plaintiffs also claimed that the HOA had done no maintenance on the roof in violation of the CC&Rs. The court of appeal held that plaintiffs had sufficient evidence to support their breach of contract claim, but the evidence did not support a negligence claim. There is no indication that the plaintiffs in *Sands* were suing for personal injuries, and the plaintiffs admitted their breach of contract and tort claims were pretty much the same. (*Id.* at 177.)

Sands is distinguishable. It did not involve personal injuries and is distinguishable on that ground. Further, *Sands* held that there needs to be an independent duty (outside of a contract) to support a negligence claim, but it did not address whether a HOA had a duty where a resident was injured in a common area.

Neither side has provided useful citations addressing when an HOA or condominium association is liable for a personal injury claim. A condominium association is solely responsible for maintaining the common areas of the building and is treated as the landlord of those areas. (*Frances T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490, 499; see also, Civil Code § 4775(a)(1) [the HOA is responsible for maintaining the common areas].) "Traditional tort principles impose on landlords, including homeowners associations, that function as landlords in maintaining the common areas of a large condominium complex, a duty to exercise due care for the residents' safety in those areas under their control. [Citations.]" (*Ritter & Ritter, Inc. Pension & Profit Plan v. The Churchill Condominium Assn.* (2008) 166 Cal.App.4th 103, 119.) "California cases hold that a homeowners association is liable to a member who suffers injury or damages as a result of alleged negligence of the association in failing to maintain a common area adequately." (*Id.* at 120.)

Here, Plaintiff alleges that Defendant did not properly maintain the common areas, allowing mold to grow, which harmed Plaintiff. These facts are sufficient to show that Defendant had a duty here.

Indeed, it is not difficult to imagine facts where a person is owed no contractual duty under the CCRs, but is nevertheless injured through negligent maintenance. Suppose the injured person is a visitor, guest, subtenant, or vendor, injured by mold, or (on a faster time line) by a burst hot water pipe. Under Defendant's theory, no matter how negligent it might have been, it would owe no duty to anyone not a party to CCRs, and therefore would not be liable to such injury victims. That's against common sense.

In arguing against giving leave to amend, Defendant argues that the business judgment rule bars Plaintiff's claims. In *Lamden v. La Jolla Shores Clubdominium Homeowners Assn.* (1999) 21 Cal.4th 249, 253, the California Supreme Court held that courts provide judicial deference to community association board's decision making for ordinary maintenance decisions when an owner sues to challenge maintenance decisions and certain other criteria are met. This rule of judicial deference is an affirmative

defense. (*Affan v. Portofino Cove Homeowners Assn.* (2010) 189 Cal.App.4th 930, 940.) Further, “[i]t does not create a blanket immunity for all the decisions and actions of a homeowners association.” (*Ibid.*)

Defendant has not shown that the business judgment rule would apply to the tort claims here. Nor has Defendant shown that all criteria necessary to apply the business judgment rule are apparent from the complaint.

Defendant’s demurrer to the negligence and premises liability claims is overruled.

The Court takes judicial notice of the CC&Rs as they are a recorded document and Plaintiff has not objected.

12. 9:00 AM CASE NUMBER: C25-03308
CASE NAME: RAMONA FICKES VS. GHC OF WALNUT CREEK, LLC
***HEARING ON MOTION IN RE: CALENDAR PREFERENCE CCP 36(A)**
FILED BY: FICKES, RAMONA MAY
TENTATIVE RULING:

Before the Court is a motion for preference filed by plaintiffs Ramona May Fickes (by and through her successor-in-interest Ronald Laurence), Dolly Ryan (individually), and Ronald Laurence (individually).

We’ve got a 95-year-old with a history of cancer, and defendants are opposing the motion on the ground that she’s too healthy to qualify? Really?

For the reasons set forth below, Plaintiffs’ motion for preference is **granted**.

Background

Ramona May-Fickes entered into the care of Walnut Creek Skilled Nursing and Rehabilitation Center on August 8, 2024. (Complaint, ¶ 22.) Plaintiffs allege that around early October 2024, when outside hospice care ceased, the care for Ramona deteriorated. (Complaint, ¶¶ 23-25.) On November 13, 2024, staff at the skilled nursing center noticed a discoloration on Ramona’s right leg that they referred to as a rash. (*Id.* at ¶ 29.) On November 19, 2024, Ramona’s family withdrew her from the skilled nursing facility and took her to an emergency room, where she was diagnosed with ischemic pain in her right foot and critical limb ischemia of the lower right extremity. (*Id.* at ¶¶ 31-34.) She was admitted to the hospital that same day and on November 27, 2024, the hospital discharged her to her home with hospice care, and she passed away at home on January 24, 2025. (*Id.* at ¶¶ 35-39.)

On November 12, 2025, the operative complaint in this matter was filed. It alleges claims on behalf of Ramona May Fickes, Ronald Laurence (Ramona’s nephew), and Dolly Ryan (Ramona’s sister). Ronald Laurence is pursuing the claims belonging to the decedent, Ramona May Fickes, as her successor-in-interest. The Complaint alleges causes of action for: (1) elder neglect; (2) elder neglect [enhance remedies]; (3) negligence; (4) fraud [constructive]; (5) tort per se [Penal Code § 368]; (6) intentional infliction of emotional distress; (7) violation of the Patient’s Bill of Rights; and (8) wrongful death. Of those claims, the only one being pursued by Ronald Laurence and Dolly Ryan, in their individual capacities, is the wrongful death claim. All other claims are being pursued on Ramona’s behalf by